

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                |                                            |                                                                                                                                                                                                                                  |
|--------------------------------------------------|------------------------------------------------|--------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Echo Brown                      | Team:<br>Team # 7                              | CCRB Case #:<br>200610759                  | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 08/14/2006 6:30 PM   | Location of Incident:<br>Outside of § 87(2)(b) | 18 Mo. SOL<br>2/14/2008                    | Precinct:<br>44                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Tue, 08/15/2006 5:39 PM | CV Reported At:<br>CCRB                        | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Tue, 08/15/2006 5:39 PM                                                                                                                                                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
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| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Colin Higgins | 28416  | 936767 | 044 PCT |
| 2. POM Robert Klein  | 28772  | 936874 | 044 PCT |
| 3. LT James Carroll  | 00000  | 920101 | 044 PCT |

| Witness Officer(s) | Shield No | Tax No | Cmd Name |
|--------------------|-----------|--------|----------|
| 1. POM Daniel Pica | 02594     | 935510 | 044 PCT  |

| Officer(s)            | Allegation                                                                        | Investigator Recommendation |
|-----------------------|-----------------------------------------------------------------------------------|-----------------------------|
| A . POM Robert Klein  | Force: PO Robert Klein used physical force against § 87(2)(b)                     | A . Unfounded               |
| B . POM Robert Klein  | Discourtesy: PO Robert Klein spoke rudely to § 87(2)(b)                           | B . Unfounded               |
| C . POM Colin Higgins | Force: PO Colin Higgins used physical force against § 87(2)(b)                    | C . Exonerated              |
| D . POM Colin Higgins | Force: PO Colin Higgins used a chokehold against § 87(2)(b)                       | D . Unfounded               |
| E . POM Colin Higgins | Abuse: PO Colin Higgins threatened to use force against unidentified individuals. | E . Exonerated              |
| F . LT James Carroll  | Force: Lt. James Carroll tasered § 87(2)(b)                                       | F . Exonerated              |

### Synopsis

On August 14 2006 at approximately 6:30pm, Lieutenant James Carroll, PO Robert Klein, PO Colin Higgins, and PO Daniel Pica responded to a call for assistance at § 87(2)(b) in the Bronx. When the four officers arrived on scene, they saw a large crowd of people outside of § 87(2)(b). According to the woman who called the police, the large crowd was there to beat-up her daughter. After talking to the woman, the four officers decided to disperse the crowd and started asking people to clear the sidewalk. § 87(2)(b) initially refused to comply with the officers' commands and stood in the middle of the sidewalk. PO Klein approached § 87(2)(b) and told him to go to his place of residence. As § 87(2)(b) started walking towards his apartment located at § 87(2)(b) in the Bronx, PO Klein pushed him twice (**Allegation A**) and told him to walk faster. § 87(2)(b) turned around and told PO Klein not to push him. PO Klein then called § 87(2)(b) a "motherfucker" and a "jerk-off" (**Allegation B**). After § 87(2)(b) called PO Klein a "jerk-off" in return, PO Klein told § 87(2)(b) that he was under arrest and proceeded to handcuff him. When § 87(2)(b) resisted being handcuffed, PO Higgins and PO Pica came to assist PO Klein handcuff § 87(2)(b). While assisting PO Klein, PO Higgins slapped (**Allegation C**) § 87(2)(b) and put him in a chokehold (**Allegation D**). After § 87(2)(b) was handcuffed, a group of unidentified male individuals ran towards PO Higgins, PO Klein, PO Pica and § 87(2)(b). PO Higgins extended his asp (**Allegation E**) and held it up while instructing the individuals to step back. The individuals complied. PO Higgins, PO Klein and PO Pica then walked § 87(2)(b) to the RMP where Lt. Carroll was standing. All four officers instructed § 87(2)(b) to get into the RMP, and when he refused, the four officers tried unsuccessfully to physically place § 87(2)(b) in the vehicle by grabbing his arms and shoulders. § 87(2)(b) resisted getting into the RMP by kicking the officers and kicking the doorjamb of the RMP. Lt. Carroll then instructed § 87(2)(b) that if he didn't get into the RMP, he would be tasered. When § 87(2)(b) again refused to get into the RMP, Lt. Carroll tasered (**Allegation F**) § 87(2)(b) at which he point § 87(2)(b) immediately got into the RMP.

§ 87(2)(g) it is recommended that Allegations A, B and D be **unfounded**. § 87(2)(g) it is recommended that Allegation C be **exonerated**. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegation E be **exonerated**. § 87(2)(g)

Therefore, it is recommended that Allegation F be **exonerated**.

### Summary of Complaint

§ 87(2)(b), who is a § 87(2)(b)-old black male weighing § 87(2)(b), made one statement in regards to this incident. § 87(2)(b) provided a verbal statement during an interview with the CCRB on August 21, 2006 [encl. 6A-E]. § 87(2)(b) who is § 87(2)(b)'s father, filed the original CCRB complaint on August 15, 2006 [encl.5A-C].

On August 14, 2006 at approximately 6:30pm, § 87(2)(b) came out of his apartment, located at § 87(2)(b) in the Bronx, and saw a large crowd gathering a couple of feet away from his apartment building. § 87(2)(b) found out from an unidentified person that there had been a fight between two girls a few minutes earlier. The large crowd, approximately 15 people, was composed of mainly females from ages 17 and up. § 87(2)(b) walked from his apartment building to a Jeep parked in front of his friend § 87(2)(b)'s apartment building located at § 87(2)(b). § 87(2)(b) leaned against the jeep for about five minutes while the crowd continued to gather. § 87(2)(b) was wearing a white shirt, a hat, sneakers and pants. Police officers, who had been called earlier, began to disperse the crowd by asking people to clear the street.

After about five minutes, an officer, later identified at the precinct as PO Robert Klein, approached § 87(2)(b) and asked him to "please clear the walkway." § 87(2)(b) said, "Sure," and walked to the apartment building, building two, on the left of § 87(2)(b)'s building. § 87(2)(b) was already standing in front of building two and § 87(2)(b) went and stood next to him. § 87(2)(b) and § 87(2)(b) were waiting for their other friends to join them so that they could all go and play basketball. PO Klein approached § 87(2)(b) again and said, "Didn't I tell you to move?" § 87(2)(b) said, "Yeah, but I live here and I'm waiting for my friends." PO Klein said, "I don't care. Move." § 87(2)(b) told § 87(2)(b) to not talk back to the officer and just walk up the block.

§ 87(2)(b) started walking toward his apartment building, which is to the left of building two. PO Klein told § 87(2)(b) to walk faster and pushed him twice as he walked toward his apartment building. PO Klein pushed § 87(2)(b) by placing the palm of his right hand on the middle of § 87(2)(b)'s back. PO Klein also called § 87(2)(b) a "motherfucker" while he was walking toward his apartment building. After PO Klein pushed § 87(2)(b) the first time, § 87(2)(b) turned around and said, "What the hell is wrong with you. Don't put your hands on me." PO Klein told § 87(2)(b) to keep walking. After being pushed a second time by PO Klein, § 87(2)(b) turned around again, and said, "You're not my father. Don't put your hands on me." PO Klein then said, "What did you say jerkoff?" "You're a jerkoff," § 87(2)(b) replied. PO Klein then said, "Ok, you're going," and handcuffed § 87(2)(b)'s right wrist and proceeded to put it behind his back. § 87(2)(b) told PO Klein to get off of him and began to pull away from PO Klein. Another officer, later identified at the precinct as PO Colin Higgins, came and put § 87(2)(b) in a headlock while PO Klein was still holding his right wrist. PO Higgins' arm was around § 87(2)(b)'s neck, and he felt pressure from PO Higgins forearm in the middle of his throat. § 87(2)(b) stated that he was able to breathe "a little bit." § 87(2)(b) was able to free himself, after about five seconds, from the headlock by wiggling his head free from space between PO Higgins' upper arm and forearm. PO Higgins then slapped the right side of § 87(2)(b)'s face with his left hand. PO Higgins' hand was open when he slapped § 87(2)(b).

PO Klein put both of § 87(2)(b)'s wrists in handcuffs and pulled him by the right arm to Lieutenant James Carroll's marked vehicle, which was double-parked in front of the Jeep against which § 87(2)(b) had been leaning earlier. Lt. Carroll was identified through the investigation. There were many people outside on § 87(2)(b) watching the incident and PO Higgins flicked his asp at the people and told them to get back. The people complied and PO Higgins did not hit anyone with the asp.

After walking § 87(2)(b) to the right side of the lieutenant's car, PO Higgins and PO Klein went and talked to § 87(2)(b)'s mother, § 87(2)(b). § 87(2)(b) was standing by the front right bumper of Lt. Carroll's vehicle. § 87(2)(b) was standing with PO Daniel Pica, who was also identified through the investigation. PO Pica, who was holding § 87(2)(b)'s right arm, stood on the right side of Lt. Carroll's vehicle throughout the incident. Lt. Carroll was also talking to § 87(2)(b) while § 87(2)(b) was standing next to PO Pica. At some point while PO Higgins, PO Klein and Lt. Carroll were talking to § 87(2)(b), § 87(2)(b) shouted to § 87(2)(b) "Mom, PO Higgins slapped me." § 87(2)(b) said, "Okay, okay," and kept talking to the three officers.

After approximately two minutes, Lt. Carroll walked to the back door on the left side of his car, opened the door, and crawled across the back seat and tasered the left side of § 87(2)(b)'s lower torso next to his hip. The back door on the right side of the vehicle where § 87(2)(b) was standing was already open. § 87(2)(b) stated that he wasn't moving while standing next to PO Pica and he doesn't know why Lt. Carroll tasered him. § 87(2)(b) stated that the taser looked like a yellow gun and that after he was tasered he saw a light flicker in front of the barrel of the taser. After being tasered, § 87(2)(b) started crying and shouted to his mother, "It hurts." Other people also shouted "They tasered him," to § 87(2)(b). Lt. Carroll told § 87(2)(b) that he tasered § 87(2)(b) because he needed to be calmed down.

Lt. Carroll and PO Pica took § 87(2)(b) to the 44<sup>th</sup> Precinct. At the precinct, PO Pica put § 87(2)(b) in a room and handcuffed him to a rail. PO Klein and PO Higgins then came in and identified themselves by name. PO Klein took § 87(2)(b)'s pedigree information and began to talk to him about school and his future plans. § 87(2)(b) told PO Klein that he wanted to be a chef. § 87(2)(b)'s mom and sister then came into the room and took § 87(2)(b) home.

Neither § 87(2)(b) nor any of the officers took § 87(2)(b) to the hospital.

### **Results of Investigation**

#### **Fieldwork**

A canvas of the incident location was conducted on August 30, 2006. Two witnesses were interviewed at the scene of incident: § 87(2)(b) who is § 87(2)(b)'s sister, and § 87(2)(b) [last name refused]. Contact information was collected from two additional witnesses: § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) did not provide statements during the canvas because they did not have time. Two canvas letters were hung during the canvas: one at § 87(2)(b) and one at § 87(2)(b). Letters were hung in these locations because § 87(2)(b) identified witnesses who lived in these two buildings. § 87(2)(b) did not know the last names or apartment numbers of the witnesses, however.

#### Additional Statements

§ 87(2)(b) [encl. 7A-C]

§ 87(2)(g). On August 14, 2006 at approximately 6:30pm, § 87(2)(b) walked out of her apartment building and saw her brother, § 87(2)(b) in handcuffs. § 87(2)(b) was standing on the passenger side of a marked NYPD vehicle next to PO Klein, PO Higgins, and PO Pica. PO Klein and PO Higgins identified themselves to § 87(2)(b) at the precinct. PO Pica and Lt. Carroll were identified by the investigation. § 87(2)(b) did not refer to § 87(2)(b) who was standing next to the vehicle without moving, but was telling the officers that his mother was coming. § 87(2)(b) saw Lt. Carroll, who was standing on the driver's side of the NYPD vehicle, reach through the back seat and taser § 87(2)(b). § 87(2)(b) started screaming and got into the NYPD vehicle. Lt. Carroll told § 87(2)(b) "I told you to get into the car." § 87(2)(b) did not hear Lt. Carroll, PO Higgins, PO Klein, or PO Pica instruct § 87(2)(b) to get into the NYPD vehicle before he was tasered. § 87(2)(b) approached PO Klein, PO Higgins and PO Pica and asked them what § 87(2)(b) had done to be arrested. PO Klein told § 87(2)(b) that § 87(2)(b) was arrested for resisting arrest and talking back.

At the precinct, § 87(2)(b) apologized to PO Klein and PO Higgins and they apologized to him for the way the incident turned out.

§ 87(2) (last name refused) [encl. 8A-C]

§ 87(2)(g). On August 14, 2006 at approximately 6:30pm, after an incident at § 87(2)(b) PO Klein and PO Higgins arrived and started asking people to move away from the building. § 87(2) did not identify PO Klein and PO Higgins by name. She stated that PO1 first approached tried to handcuff § 87(2)(b). Based on § 87(2)'s description of PO1's actions, the investigation determined that PO1 was PO Klein. § 87(2) also stated that PO2 pulled out his asp while instructing people in the crowd to move back. Based on § 87(2)'s description of PO2's actions, the investigation determined that PO2 was PO Higgins.

After asking people to move away from the building, PO Klein approached § 87(2)(b) who was talking to § 87(2) in front her apartment building located at § 87(2)(§ 87(2)(b)) and said, "What the fuck did I just say? Didn't I tell you to move from here?" § 87(2)(b) said to PO Klein, "What am I doing? I'm not doing nothing." § 87(2) told § 87(2)(b) to just go home and § 87(2)(b) started to walk up § 87(2)(b) to his apartment building. PO Klein followed § 87(2)(b) and grabbed his lower arms from the back and began to handcuff him. § 87(2)(b) again asked PO Klein what he did. § 87(2)(b) also told PO Klein again that he "didn't do nothing wrong and that he was just going home." § 87(2)(b) moved his arms to avoid being handcuffed, but PO Klein was still able to handcuff him. Unidentified people started to approach PO Klein and § 87(2)(b). The people told PO Klein to let § 87(2)(b) go because he didn't do anything. § 87(2)(b) began turning his head back towards the people and started yelling, "Call my mother." PO Klein smacked § 87(2)(b) in the face as he was turning his head back. § 87(2)(b) yelled out, "He touched my face!" At some point, PO Higgins approached PO Klein and § 87(2)(b) and pulled out his asp, expanded it by flicking his wrist, and instructed people to move back. The people complied. PO Higgins never touched anyone at the scene of incident with the asp.

PO Klein also tasered § 87(2)(b) in the middle of the sidewalk, but § 87(2) didn't know why PO Klein tasered § 87(2)(b). § 87(2) stated that § 87(2)(b) was not moving or resisting when PO Klein tasered him. According to § 87(2), § 87(2)(b) was "just standing there." § 87(2)(b) screamed, "Owww," after being tasered. § 87(2) stated that the taser looked like a slingshot.

§ 87(2) remained standing in front of her apartment building throughout the incident. § 87(2)'s apartment building was approximately six feet away from § 87(2)(b) and PO Klein. None of the officers on scene ever said anything to § 87(2) at any point during the incident.

#### Attempts to Contact Additional Witnesses

Several messages were left for § 87(2)(b) and § 87(2)(b) asking them to contact the CCRB at their earliest convenience. Letters were also sent to § 87(2)(b) and § 87(2)(b)'s home address. The letter sent to § 87(2)(b) was returned to the agency as undeliverable and no other address is available for § 87(2)(b). As of the date of this report, neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB. Several messages were also left for § 87(2)(b), § 87(2)(b)'s mother, but she also has not contacted the CCRB. Letters were also sent to § 87(2)(b) asking her to contact the CCRB. § 87(2)(b) named § 87(2), § 87(2)(b), and § 87(2) (last names unknown) as witnesses the incident. § 87(2)(b) knew what

apartment building that § 87(2)(b), § 87(2)(b) and § 87(2)(b) lived in, but he did not know their apartment numbers. § 87(2)(b) also did not know their phone numbers. During the canvas, letters were hung in § 87(2)(b), § 87(2)(b), and § 87(2)(b)'s apartment building buildings. As of the date of this report, there has been no response to the letters posted during the canvas.

#### Identification of Officers Interviewed

PO Klein and PO Higgins identified themselves to § 87(2)(b) at the precinct. PO Klein identified Lt. James Carroll as the supervising officer that tasered § 87(2)(b) during his interview at the CCRB. Lt. Carroll identified PO Pica as his operator during his interview at the CCRB.

#### **Lieutenant James Carroll, PO Robert Klein, PO Colin Higgins, and PO Daniel Pica.**

Lt. Carroll is a § 87(2)(b)-old, § 87(2)(b) white male with gray hair and blue eyes. He was appointed to the force in December of 1997. PO Klein is a § 87(2)(b)-old, § 87(2)(b), white male with brown hair and hazel eyes. He was appointed to the force in January of 2005. PO Higgins is a § 87(2)(b)-old, § 87(2)(b), white male with brown hair and blue eyes. He was appointed to the force in January of 2005. PO Pica is a § 87(2)(b)-old white male with blonde hair and blue eyes. He was appointed to the force in July of 2004.

#### *Taser/Stun Gun Device Report* [encl. 14]

Lt. Carroll filled out a taser/stun gun device report. The report states that § 87(2)(b) was arrested § 87(2)(a) FCT § 380.1. The report also states that § 87(2)(b) became violent and combative after he was arrested and refused to get into the back of the RMP for transport to the precinct. § 87(2)(b) kicked the doors of the RMP and also attempted to kick officers at the scene of incident. After the officers were unable to physically place § 87(2)(b) in the vehicle, Lt. Carroll stunned him in his side for three seconds to "alleviate risk to himself and officers present." § 87(2)(b) got into the vehicle after being tasered.

#### *Lt. Carroll: Memo Book* [encl. 13A-B]

1810: 10-52 § 87(2)(b) § 87(2)(b)  
1820: One under by sector  
1822: Transporting 1 male perp to SH for sector  
1827: Male out of auto

#### *PO Klein: Memo Book* [encl. 9A-C]

1810: 52 @ § 87(2)(b).  
1820: 1 juv under to SH.  
§ 87(2)(b): § 87(2)(b) § 87(2)(b), mother of § 87(2)(b) did take custody of said juvenile. § 87(2)(b)

#### *PO Higgins: Memo Book* [encl. 11A-C]

1800: § 87(2)(b) 52  
1820: 1 under-juv  
§ 87(2)(b): juv released

#### *PO Pica: Memo Book* [encl. 16A-C]

1810: 10-10 § 87(2)(b)  
1820: 1 under by Klein  
1835: 10-52 @ § 87(2)(b)

#### *CCRB Statements* [encls. 10A-B, 12A-B, 15A-C, and 17A-C]

§ 87(2)(g)  
§ 87(2)(g) Lt. Carroll, who is a § 87(2)(b) old, § 87(2)(b) white male with gray hair and blue eyes, was interviewed at the CCRB on September 19, 2006. Lt. Carroll weighs § 87(2)(b) and was appointed to the force in December of 1997. PO Klein, who is a § 87(2)(b) old, § 87(2)(b) white male with brown hair and hazel eyes, was interviewed at the CCRB on September 6, 2006. PO Klein weighs § 87(2)(b) and was appointed to the force in January of 2005. PO Higgins, who is a § 87(2)(b)-old, § 87(2)(b) white male with brown hair and blue eyes, was interviewed at the CCRB on September 14, 2006. PO Higgins weighs § 87(2)(b) and was appointed to the force in January of 2006. PO Pica, who is a § 87(2)(b)-old, § 87(2)(b) white

male with blond hair and blue eyes, was interviewed at the CCRB on September 21, 2006. PO Pica weighs § 87(2)(b) and was appointed to the force in July of 2004.

On August 14, 2006 at approximately 6:30pm, Lt. Carroll, PO Klein, PO Higgins, and PO Pica received a call for a dispute at § 87(2)(b) in the Bronx. When the 4 officers arrived on scene, there were approximately 20-30 people outside of the location. PO Klein and PO Higgins stated that as they walked towards the crowd, a woman shouted to them that she was the one who called the police. PO Klein and PO Higgins followed the woman into the vestibule of the building and she told PO Klein that all the people in front of the building were there to beat-up her daughter. PO Klein told the woman that he couldn't lock anybody up for something someone is about to do, but he could clear the front of her building since those people are being disruptive and loud.

PO Pica stated that he and Lt. Carroll spoke to the woman in her apartment and that PO Klein and PO Higgins did not speak to the woman. According to PO Pica and Lt. Carroll, the woman informed them that the crowd of people in front of her apartment building wanted to beat-up her daughter. The woman also stated that she called a cab for her daughter and she wanted PO Pica and Lt. Carroll to wait at the scene of incident with her until the cab arrived. As Lt. Carroll and PO Pica walked the woman's daughter from the building to the street to wait for her cab, a crowd of approximately 30-55 people was shouting at the woman's daughter. The crowd was yelling "fuck you," "get out of the neighborhood," and "you don't belong here" to the woman's daughter.

PO Klein, PO Higgins and PO Pica then went outside and told everyone to move from in front of the building. Everyone complied, "for the most part," but § 87(2)(b) stood a few feet in front of the building on the sidewalk with his arms crossed. PO Klein, PO Higgins and PO Pica stated that § 87(2)(b) is a large individual who is 6ft 2in tall and weighs 350lbs. When § 87(2)(b) didn't move, PO Klein said to him, "Sir, that includes you. You need to clear the block." § 87(2)(b) then said, "Motherfucker, I live here." PO Klein replied, "No, you don't live here on the sidewalk. You live in an apartment somewhere nearby. Move. Go to that apartment." § 87(2)(b) walked approximately five or ten feet away from where he was standing and stopped in the middle of the sidewalk with his arms crossed. PO Klein approached § 87(2)(b) and told him to clear the sidewalk or he would be arrested. § 87(2)(b) said, "Arrest me then."

PO Klein removed his handcuffs and grabbed one of § 87(2)(b)'s arms and § 87(2)(b) pulled his arm away. PO Higgins and PO Pica, who had been clearing the crowd off the sidewalk in front of § 87(2)(b) immediately came to assist PO Klein. PO Klein stated that Lt. Carroll also assisted in handcuffing § 87(2)(b) but PO Higgins and PO Pica were unsure if Lt. Carroll assisted in the handcuffing of § 87(2)(b). Lt. Carroll stated that he remained with the woman's daughter while PO Klein, PO Higgins and PO Pica were trying to handcuff § 87(2)(b). While attempting to handcuff § 87(2)(b) PO Higgins stated that he heard § 87(2)(b) hack up phlegm as if he was preparing to spit at PO Higgins and PO Klein. PO Higgins, who was standing behind § 87(2)(b) responded by placing his hand on § 87(2)(b)'s chin and pushing his head to the side to avoid being spit on. § 87(2)(b) resisted being handcuffed by flailing his arms and by moving from side to side to prevent the officers from gaining control of his arms. PO Klein, PO Higgins and PO Pica eventually handcuffed § 87(2)(b) by gaining control of his arms. After § 87(2)(b) was handcuffed, a group of approximately seven males ran toward PO Klein, PO Higgins and PO Pica. PO Higgins extended his asp by flicking his wrist and told the males to step back while holding the asp above his head.

PO Klein and PO Higgins then walked § 87(2)(b) to PO Klein's vehicle, which was parked in the vicinity of § 87(2)(b). § 87(2)(b)'s mother, § 87(2)(b) came out of an apartment buildings on § 87(2)(b) and informed PO Pica that § 87(2)(b) was her son. PO Pica held § 87(2)(b) who PO Pica described as "hysterical," back to prevent her from running towards § 87(2)(b) while PO Klein and PO Higgins were taking him to the police vehicle.

Lt. Carroll stated that two unidentified impact officers arrived on scene and he instructed them to wait with the woman's daughter. Lt. Carroll then opened the back passenger side door of his RMP and attempted to help PO Klein and PO Higgins put § 87(2)(b) into the vehicle. § 87(2)(b) refused to get into the RMP by kicking the RMP door and the officers' legs. After verbally instructing § 87(2)(b) several times to get into the RMP, Lt. Carroll, PO Klein and PO Higgins tried using physical force by grabbing § 87(2)(b)'s arms and shoulders to place him into the back of the RMP, but they were unable to put him in the vehicle. A crowd of about 12-15 people began to form around the RMP as Lt. Carroll, PO Klein and PO Higgins tried to get § 87(2)(b) into the RMP. Lt. Carroll then informed § 87(2)(b) that he would be tasered if he did not get into the RMP. § 87(2)(b) screamed "fuck you" to Lt. Carroll and told him that he didn't do anything and that he wasn't getting into the RMP. After § 87(2)(b) continued to

resist getting into the vehicle, Lt. Carroll walked to the driver's side of the RMP, retrieved the taser, removed the darts and crawled through backseat of the vehicle from the driver's side and tasered § 87(2)(b) for approximately 2 seconds on the small of his back. § 87(2)(b) then got into the RMP without further resistance.

Lt. Carroll stated that a taser, which is a yellow gun with black stripes, is used for noncompliant and emotionally disturbed persons. Lt. Carroll stated that he tasered § 87(2)(b) to gain compliance before the crowd got any bigger and the situation got further out of control. Lt. Carroll decided to use the taser as a stun gun device rather than shooting the darts at § 87(2)(b) because it was safer. Lt. Carroll stated that the darts aren't as accurate because he could've hit someone else in the process of trying to shoot them at § 87(2)(b).

§ 87(2)(b)'s mother, § 87(2)(b) approached Lt. Carroll, PO Klein and PO Higgins and said, "What are you doing? That's my son." Lt. Carroll and PO Klein told § 87(2)(b) that her son was under arrest § 87(2)(a) FCT § 380.1. § 87(2)(b) said to the officers, "He's § 87(2)(b)-old and I'm on the job." § 87(2)(b) then showed the officers a § 87(2)(b) ID. PO Klein told § 87(2)(b) that she would have to come to the stationhouse to pick-up § 87(2)(b). It is unclear who transported § 87(2)(b) to the precinct.

PO Klein took § 87(2)(b) to the juvenile detention room at the precinct, where § 87(2)(b) apologized to PO Klein and said that he was sorry. PO Klein then removed § 87(2)(b)'s handcuffs because "he was acting like a gentleman."

§ 87(2)(b) and § 87(2)(b) who is § 87(2)(b)'s father, arrived at the precinct and PO Klein explained what happened. § 87(2)(b) asked § 87(2)(b) if he called PO Klein a "motherfucker" and he said, "Yes." § 87(2)(b) then assured PO Klein that § 87(2)(b) is a "good kid" with aspirations to be a chef and that he plays football. § 87(2)(b) then asked if it was possible to process her son out of juvenile court instead of family court. PO Klein agreed to process § 87(2)(b) under juvenile court and released him to his mother.

At no point during the incident, did Lt. Carroll, PO Klein, PO Higgins or PO Pica curse at § 87(2)(b). Neither Lt. Carroll nor PO Klein, PO Higgins, or PO Pica put § 87(2)(b) in a chokehold, pushed him or slapped him.

#### NYPD Documents

*SPRINT* [encl. 19A-C]

A *SPRINT* § 87(2)(b) report for this incident indicates that a female caller by the last name of § 87(2)(b) called the police at 6:56pm to report that there was a group of people outside of § 87(2)(b).

*Roll Call* [encl. 18A-F]

The roll call for tour 3 on August 14, 2006 lists PO Higgins and PO Klein as partners who were on patrol in the 44<sup>th</sup> Precinct. Lt Carroll is listed as the platoon commander and PO Pica is listed as his operator.

*Command Log* [encl. 20]

The 44<sup>th</sup> Precinct command log for August 14, 2006 indicates that § 87(2)(b) is § 87(2)(b) old and was arrested by PO Klein § 87(2)(a) FCT § 380.1

#### Victim Criminal Conviction History

§ 87(2)(a) FCT § 380.1

#### Civilian CCRB History

§ 87(2)(b) does not have a CCRB complaint history.

#### Police Officer CCRB History

The Board has not substantiated any allegations against Lt. Carroll, PO Klein or PO Higgins.

### **Conclusions and Recommendations**

#### Identification of Subject Officers

§ 87(2)(b) identified PO Klein as the officer who first approached him. § 87(2)(b) also identified PO Klein as the officer who allegedly called him a "motherfucker" and a "jerkoff" and pushed him in the back.

§ 87(2)(b) identified PO Higgins as the officer who allegedly put him in headlock and slapped him. Further, PO Higgins stated that he pushed § 87(2)(b)'s face by placing his hand on § 87(2)(b)'s chin because he believed that § 87(2)(b) was trying to spit at him. PO Klein, PO Higgins and PO Pica identified Lt. Carroll during their interviews at the CCRB as the officer who tasered § 87(2)(b). Lt. Carroll also stated during his interview at the CCRB that he tasered § 87(2)(b).

#### Undisputed/ Disputed Facts

It is not disputed that § 87(2)(b) was tasered by Lt. Carroll and that he was arrested by PO Klein and taken to the 44<sup>th</sup> Precinct.

§ 87(2)(g)

#### Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

#### Allegations Not Pleaded

§ 87(2)(b) stated that PO Klein asked § 87(2)(b) “What the fuck did I just say?” while § 87(2)(b) was standing in front of her apartment building. § 87(2)(b) also stated that PO Klein tasered and slapped § 87(2)(b).

#### **Allegation A: PO Robert Klein used physical force against § 87(2)(b)**

§ 87(2)(b) alleged that PO Klein pushed him in the back when he was walking to his apartment building. PO Klein stated that at no point during the incident did he push § 87(2)(b) in the back. PO Higgins and PO Pica also stated that they did not see PO Klein push § 87(2)(b). PO Klein, PO Higgins, PO Pica, and Lt. Carroll all expressed a fear for their safety due to increasing size of the crowd on § 87(2)(b). All four officers stated that they wanted to diffuse the situation as expeditiously as possible and leave the scene of incident before the crowd turned violent. § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation A be **unfounded**.

#### **Allegation B: PO Robert Klein spoke rudely to § 87(2)(b)**

§ 87(2)(b) stated that PO Klein called him a “motherfucker” and a “jerkoff.” PO Klein, PO Higgins, and PO Pica all stated that they heard § 87(2)(b) call PO Klein a “Motherfucker” after he instructed § 87(2)(b) to clear the sidewalk. PO Klein also stated that at the 44<sup>th</sup> Precinct when § 87(2)(b)'s mother, § 87(2)(b) asked § 87(2)(b) if he called PO Klein a “motherfucker,” § 87(2)(b) said, “Yes,” and apologized to PO Klein. PO Klein, PO Higgins, PO Pica and Lt. Carroll all deny using any curse words toward § 87(2)(b). Furthermore, it is highly unlikely that PO Klein would engage in name calling with § 87(2)(b) while trying to disperse the increasingly agitated crowd. § 87(2)(g)



§ 87(2)(g) it is recommended that Allegation B be **unfounded**.

**Allegation C: PO Colin Higgins used physical force against § 87(2)(b)**

§ 87(2)(b) stated that PO Higgins slapped him after he freed himself from the headlock. § 87(2)(b) stated that he does not know why PO Higgins slapped him and § 87(2)(b) never stated that he spit at or attempted to spit at any officer on scene. § 87(2)(b) stated that PO Klein slapped § 87(2)(b) as he was turning towards the crowd behind him and telling them to call his mother. PO Higgins stated that he pushed § 87(2)(b)'s chin with his hand because he heard § 87(2)(b) hack up phlegm in preparation to spit on him or PO Klein. PO Higgins did not see § 87(2)(b) spit, however. PO Klein did not state that he heard § 87(2)(b) prepare to spit or that he saw § 87(2)(b) spit.

§ 87(2)(g)  
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§ 87(2)(g) it is recommended that allegation C be **exonerated**.

**Allegation D: PO Colin Higgins used a chokehold against § 87(2)(b)**

§ 87(2)(b) alleged that PO Higgins put him in a headlock for five seconds while trying to handcuff him. § 87(2)(b) stated that he felt pressure on his neck and he could breathe “a little bit” while in the headlock. § 87(2)(b) stated that he was able to free himself from the headlock by wiggling his head out of PO Higgins’ folded arm. PO Higgins stated that he never made contact with § 87(2)(b)'s neck. PO Klein, PO Pica and Lt. Carroll all stated that they never made contact with § 87(2)(b)'s neck and that they never saw any officer on scene make contact with § 87(2)(b)'s neck. All four officers stated that § 87(2)(b) was resisting being handcuffed by moving his body and flailing his arms.

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§ 87(2)(g) it is recommended that allegation D be **unfounded**.

**Allegation E: PO Colin Higgins threatened to use force against unknown individuals. Exonerated**

§ 87(2)(b) stated that PO Higgins flicked his asp at the crowd of people that had gathered around the scene of incident. PO Higgins stated that he extended his asp when a group of male individuals ran toward him and PO Klein as they were handcuffing § 87(2)(b). PO Higgins held the asp and instructed the men to step back. PO Higgins and the other three officers all stated that a crowd of people gathered around them while they were trying to arrest § 87(2)(b) and put him in the RMP. All four officers expressed a fear for their safety due to the size of the crowd and the crowd’s increasing discontent. § 87(2)(g)

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§ 87(2)(g), it is recommended that Allegation E be **exonerated**.

**Allegation F: Lieutenant Carroll tasered § 87(2)(b)**

The NYPD Patrol Guide [216-05], regarding “Mentally Ill or Emotionally Disturbed persons” stipulates that “patrol supervisors may use a taser/ stun device to restrain an emotionally disturbed person who is evincing behavior that might result in physical injury to himself or others [encl. A].”

§ 87(2)(b) stated that he “was just standing” next to the RMP and that he “wasn’t doing anything” when Lt. Carroll tasered him. Lt. Carroll stated that he tasered § 87(2)(b) after § 87(2)(b) kicked him and other officers on scene while they were trying to physically put him in the RMP. § 87(2)(g)

§ 87(2)(g)

Lt. Carroll also stated that he tasered § 87(2)(b) to expedite § 87(2)(b)’s arrest and leave the scene of incident before the crowd became violent, which could have resulted in physical injury to everyone at the scene of incident. According to Lt. Carroll and other officers on scene, the crowd exhibited violent proclivities by shouting obscenities at the officers while they tried to arrest § 87(2)(b) § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation F be **exonerated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: